

25STCV31025 25STCV31025

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Case Number: 25STCV31025 Hearing Date: July 13, 2026 Dept: 12

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

Orozco

v. Sysco Los Angeles, Inc.

25STCV31025

Dept. 12 SSC

Hon.

Carolyn B. Kuhl

Date of

Hearing: July 13, 2026

Defendant's Motion to Stay Proceedings

Pending Related Ramirez Action

Tentative

Ruling: The Motion is granted. The court stays the class claims in this action. However, Plaintiff may proceed with his individual claims if he so desires.

This wage-and-hour putative class action

was filed on October 22, 2025. Plaintiff

alleges claims for overtime, meal and rest break premiums, wages, and unpaid

sick leave, was well as derivative causes of action. Plaintiff seeks to represent “[a]ll current and former hourly-paid or non-exempt employees who worked for any of the Defendants within the State of California at any time during the period from four years preceding the filing of this Complaint to final judgment.” (Compl., ¶ 13.)

This action is

related to two other wage-and-hour actions brought against Defendant. One of the related cases is Ramirez v. Sysco Los Angeles, Inc., Case No. 23STCV06356 (Ramirez action). The Ramirez action was filed by Sergio Ramirez (Ramirez) on March 21, 2023. On January 17, 2024, Ramirez and Gabriel Arteaga (Arteaga) filed the Second Amended Complaint, alleging the following nine causes of action: (1) Failure to Pay Minimum and Regular Rate Wages; (2) Failure to Pay Overtime Compensation; (3) Failure to Provide Meal Periods; (4) Failure to Provide Rest Periods; (5) Failure to Indemnify Necessary Expenditures; (6) Failure to Provide Accurate Itemized Wage Statements; (7) Failure to Pay Wages at Discharge or Quitting; (8) UCL; and (9) PAGA. Ramirez and Arteaga sought to represent a class of all non-exempt employees of Defendant who were employed any time after March 2019.

In the Ramirez action, this court did not grant the plaintiffs’ certification motion in its entirety. The plaintiffs in the Ramirez action originally sought certification of multiple claims (meal and rest breaks, minimum and overtime wages, compliant wage statements, reimbursement of expenses, and failure to timely pay wages) as to a class of all of Defendant’s non-exempt employees. (Ruling, Dec. 30, 2025 in Ramirez action, at p. 2.) On December 30, 2025, this court certified the following class “with respect to Plaintiffs’ theory of liability that Defendant failed to properly compensate employees at the Walnut, California location for time spent after their shifts going through the ‘bag check’ or ‘security screening’:

All persons who worked for Defendant at its Walnut, California location as non-exempt employees at any time between March 2020 and mid-2022 when Defendant was imposing its “bag check” or “security screening.”

(Ruling, Dec. 30, 2025 in Ramirez action, at p. 1.)

The court also certified a “reimbursement class” solely for the purposes

of seeking relief under the fifth cause of action:

All persons who worked for Defendant in California as nonexempt employees in the position of “driver” at any time during the period beginning on August 20, 2023, and ending on the date of this Order.

(Ruling, Dec. 30, 2025 in Ramirez action, at p. 1.)

The certified reimbursement claim for drivers is limited to costs for drivers' uniforms.

This action and the Ramirez action are also related to Salas v. Sysco Los Angeles, Inc., Case No. 25STCV11307 (Salas action). The plaintiff in the Salas action asserts the following six causes of action on behalf of all “truck drivers” employed by Defendant from May 2022 to the present: (1) Meal Period Violations; (2) Rest Period Violations; (3) Failure to Reimburse Expenses; (4) Wage Statement Violations; (5) UCL; and (6) Waiting Time Penalties.

On February 17, 2026, Defendant moved to stay the Salas action pending the Ramirez action. The motion to stay the Salas action was made on the grounds that compelling judicial and party efficiencies would be realized by a stay order because the Ramirez action (1) alleges virtually identical wage and hour violations on behalf of the same group of allegedly aggrieved employees against the same defendant, (2) arises from the same facts and theories of liability, and (3) covers overlapping time periods, with the Salas action's period being subsumed entirely within the Ramirez action period.

On June 2, 2026, this court granted Defendant's motion to stay the Salas action (Salas Stay Ruling). (Minute Order, June 2, 2026.) The court noted that the plaintiff in the Salas action did “not suggest that there [were] any facts on which he could base a request for certification of [new claims for unpaid overtime] that [were] different from those presented by Ramirez in an unsuccessful attempt to certify a class to seek recovery for unpaid meal and rest breaks.” (Salas Stay Ruling,

at p. 4.) The court reasoned that it would be improper to force Defendant to defend against repeated attempts to certify a class of its employees after prior attempts failed, at the same time that Defendant continued to litigate certified class claims in the Ramirez action. (Salas Stay Ruling, at pp. 4-5.) The court stated:

The class claims [the plaintiff in Salas] seeks to litigate in his Complaint overlap completely with, or are a subset of, claims for which class certification was unsuccessfully sought in [the Ramirez action]. Plaintiff in this case does not suggest factual theories for certifying a class of truck drivers that were not presented to the court in [the Ramirez action]. Allowing duplicative class discovery and duplicative briefing to move forward in [the Salas action] is inconsistent with this court's responsibilities for reducing litigation costs and moving cases toward resolution in complex cases. (See California Rules of Court, Rule 3.400.) The stay extends only to Plaintiff Salas's class claims. He may pursue his individual claims.

(Salas Stay Ruling, at p. 5.)

Defendant now moves to stay this action pending the Ramirez action. The Motion is made on the grounds that compelling judicial and party efficiencies will be realized by entry of a stay because the Ramirez action: (1) alleges virtually identical wage and hour violations on behalf of the same group of allegedly aggrieved employees against the same Defendant; (2) arises from the same factual allegations and theories of liability; and (3) covers overlapping time periods, with the time period alleged in this action wholly subsumed within the period at issue in the Ramirez Action. If the court is not inclined to stay this action, Defendant requests, in the alternative, that this action and the Ramirez action be coordinated "to avoid duplicative discovery, conserve judicial and party resources, and prevent inconsistent rulings." (Def's Not. Mot., at p. 2.)

Discussion

"[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (People

v. Bell (1984) 159 Cal.App.3d 323, 329.)

“[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.” (OTO, L.L.C. v. Kho (2019) 8 Cal. 5th 111, 141.)

As it did in the Salas Stay

Ruling, this court once again exercises its discretion to stay the action pending the Ramirez action. As

Defendant demonstrates, both the time period and all claims except for one (Plaintiff's claim for failure to provide paid sick leave) are fully encompassed by the complaint and motion for class certification in the Ramirez action. The plaintiffs in the Ramirez action took extensive class discovery and presented a motion for class certification of essentially the same claims alleged in this action.

Plaintiff argues that

it would be improper to stay this action “before Plaintiff has had any opportunity to seek certification based on different evidence, different subclasses, different theories of common proof, and a different litigation record than Ramirez.” (Pl's Opp., at p.

1.) However, Plaintiff has failed to

identify any such different evidence and theories. Once again, this court sees no reason why Defendant should be required to oppose numerous class certification motions seeking to certify essentially identical claims while it attempts to litigate the merits of a certified class's claims.

This

is not to say, of course, that this court's certification ruling in the Ramirez

action has preclusive effect and “binds” Plaintiff in this action. (See Pl's Opp., at p. 6.) By staying this action pending the Ramirez

action's proceedings, this court is not dismissing Plaintiff's class

claims. The United States Supreme Court,

in an opinion relied upon by Plaintiff here, has explained that, in order to

avoid a situation where a defendant is subjected to “serial relitigation of class certification,” courts can rely “on principles of stare decisis and comity among courts to mitigate the sometimes substantial costs of similar litigation brought by different plaintiffs.”

(Smith v. Bayer Corp. (2011) 564 U.S. 299, 316-317, italics in original.) Here, allowing duplicative

class discovery and duplicative briefing to move forward in this action while the class claims in the Ramirez action are litigated is inconsistent with this court's responsibilities for reducing litigation costs and moving cases toward resolution in complex cases. (Cal. Rules of Court, rule 3.400.)